

SECTION 1: PERFORMANCE WORK STATEMENT

PART 1 – GENERAL

1. GENERAL: This is a non-personal services blanket purchase agreement (BPA) to provide Furniture Moves Services for the U.S. Army Garrison Fort Drum New York.

- The Government will not exercise any supervision or control over the BPA service providers.
- The Contractor shall perform to the standards specified in this Performance Work Statement (PWS).
- Blanket Purchase Agreement service providers shall be accountable solely to the Contractor who, in turn, is responsible to the Government.
- The Contractor shall provide all personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items and non-personal services necessary to complete the requirements as outlined and defined in this PWS and each individual BPA Call

1.1. SCOPE OF WORK: The Contractor shall provide all resources necessary to perform all furniture moves tasks and frequencies as described and defined in this Performance Work Statement (PWS) Part 5 Specific Tasks. The Contractor shall move, install, assemble, and disassemble furniture in a variety of buildings on Fort Drum, NY 13602 and its surroundings.

1.2. Period of Performance (PoP): The ordering period shall not exceed 60 months. The period of performance shall be determined by each BPA Call.

1.3. Place of Performance: The work to be performed under this Blanket Purchase Agreement shall be performed at Fort Drum and its surrounding areas.

1.3.1 Recognized Holidays:

New Year's Day	Labor Day
Martin Luther King Jr.'s Birthday	Columbus Day
President's Day	Veteran's Day
Memorial Day	Thanksgiving Day
Independence Day	
Juneteenth	

1.3.2 Hours of operation:

Contractor operating hours shall be consistent with normal core duty hours of Fort Drum unless otherwise directed by the Contracting Officer (KO) or his designated representative. Normal core duty hours are 7:30 AM - 4:00 PM, Monday through Friday, excluding Government holidays. The Contractor can expect that a portion of the work may be performed outside of these core hours and on weekends or holidays. Certain restrictions apply to designated Physical Training (PT) areas on Fort Drum during PT hours.

1.3.3 Installation Closures: When an unforeseen installation closure occurs on a regularly scheduled day of work, the Contractor shall reschedule the work to be performed the following day unless the following day is a Saturday, Sunday, a recognized Federal holiday, and when routine work is not scheduled for that day; or reschedule the work for the next business day following the closure.

1.3.4 Unforeseen Closures of Service Areas: When an unforeseen closure occurs on a regularly scheduled day of work (i.e., severe weather, training holiday, day of mourning, etc.).

- The Contractor shall reschedule the service on any day satisfactory to the customer and minimizes impact on the Contractor's normal work schedule.

1.3.5 Type of Blanket Purchase Agreement: The Government will award a Firm Fixed Price (FFP) type of Blanket Purchase Agreement with each individual BPA call.

1.3.6 Security Requirements: The Government may require the Contractor to provide service to a secured area. In such instances, the Contractor personnel shall be trained in security requirements and escorted during the entire time needed to complete the tasks outlined in PWS Part 5 Specific Tasks with each individual BPA Call at such facilities.

1.4. INSTALLATION ACCESS AND CONTROL:

1.4.1. AT Level I training. This standard language is for Contractor employees with an area of performance within an Army controlled installation, facility, or area. Antiterrorism Level I: All Contractor employees, to include Subcontractor employees, requiring access to Army installations, facilities and controlled access areas shall complete AT Level I awareness training within 30 calendar days after contract start date or effective date of incorporation of this requirement into the contract, whichever is applicable. The Contractor shall submit certificates of completion for each affected Contractor employee and Subcontractor employee, to the COR or to the Contracting Officer, if a COR is not assigned, within 30 calendar days after completion of training by all employees and Subcontractor personnel. AT Level I awareness training is available at the following website: <https://jkodirect.jten.mil>.

1.4.2. Access and General Protection/Security.

1.4.2.1. Installation Access and Identification of Contractor's Employees: Entry to the installation requires the following: current vehicle registration, proof of insurance, valid driver's license for the vehicle driver, and REAL ID compliant picture identification for other personnel. Contractors/Subcontractors and their employees requiring access to the installation will be required to comply with the installation access control policy/procedures. The Government will not be responsible for damages due to delay/stoppage caused by failure to comply. Contractors shall be restricted to physically sign in at the Visitor Control Center (VCC), located just prior to the Paul Cerjan Gate, for entry unless they have a DoD issued ID card, a local temporary pass, or a local access badge (LAB). The Contractor shall also provide all information required for background checks to meet installation access requirements to be accomplished by Director of Emergency Services or Physical Security Office. Contractor workforce must comply with all personal identity verification requirements as directed by DOD, HQDA and/or local policy. In addition to the changes otherwise authorized by the changes clause of this contract, should the Force Protection Condition (FPCON) at any individual facility or installation change, the Government may require changes in Contractor security matters or processes.

1.4.2.2. The Contractor shall provide a list of names and dates of birth of all employees that will be working on this contract to include Subcontractors. CORs/Contract Technical Representatives are required to complete an IMDR-ES Form 2 (Application for Sponsorship) for all individuals needing access under the contract and submit to usarmy.drum.imcom.mbx.des-acp@army.mil at least 7 days prior to access being needed.

1.4.2.3. Each employee who requires access to Fort Drum to perform work under any contract, at any tier, must obtain a DoD identification credential, temporary pass, or a LAB to obtain access to Fort Drum.

1.4.2.4. The Contractor shall provide information as required by the Fort Drum Chief, Physical Security to enable the Government to conduct a National Crime Information Center Interstate Identification Index (NCIC-III) check on all Contractor employees who require access to Fort Drum. If the NCIC-III is not adverse, a 30-day temporary access pass will be prepared by the Fort Drum Physical Security Division while the Contractor's employee makes an appointment for a Local Access Badge (LAB) to be created if access is needed for longer than 30 days. A LAB will be issued for the duration of the contract or a period of no longer than 365 days at a time. If the NCIC-III is adverse, the employee will be denied access. If access is denied for any reason, the Contractor's employee may request a waiver from the installation utilizing the Access Waiver Denial Program. If a Contractor or Contractor's employee is denied access for any reason the employee will not be allowed access until a waiver is requested and

approved. There is an appeals process through the Directorate of Emergency Services. Final determination to allow entry and the issuance of a DoD credentials rest with the Garrison Commander or his designee, the Director, Emergency Services.

1.4.2.5. If an employee no longer needs the DoD identification credential for any reason (e.g., quits his/her job or no longer performs under the contract), the Contractor is required to collect the DoD identification credential from the employee and surrender it to the Fort Drum Physical Security Division within four (4) calendar days of such change. If the DoD identification credential cannot be returned within the required time frame for any reason, the Contractor shall immediately notify the Physical Security Division verbally, followed up in writing the next workday. Email notification is authorized. An employee's inability to obtain entrance to a Government installation because he/she does not have the required identification badge or visitor's pass shall not excuse timely performance of the requirements of this contract. DoD identification credentials are currently issued at the VCC, Bldg. 11008, located just outside the Paul Cerjan Gate. The Government may change the location at which DoD identification credentials are issued or returned, with or without advance notice to the Contractor. No such changes shall not be a basis for adjusting the contract price under any clause of this contract.

1.4.2.6. DoD identification credentials will not be reproduced or copied by the Contractor, its Subcontractors, or their employees. If an employee's DoD identification credential is lost, stolen, or reproduced, the Contractor shall verbally report the loss, theft, or reproduction to the Fort Drum Physical Security Division on the day such loss, theft, or reproduction is discovered, followed by a written report of the circumstances to the Fort Drum Physical Security Division within two (2) calendar days.

1.4.2.7. Each Contractor employee shall possess/wear the DoD identification credential while performing work under the contract. The DoD identification credential shall be worn on the upper front of the outer garment unless precluded by OSHA regulation(s). The DoD identification credential will not be used for access to any Government installation except for performance of work under the contract for which it was issued. The Contractor shall upon expiration or termination of the contract, collect all DoD identification credentials and turn them into the COR.

1.4.2.7.1. For Contractors that do not require CAC but require access to a DoD facility or installation. Contractor and all associated Sub-contractors employees shall comply with adjudication standards and procedures using the National Crime Information Center Interstate Identification Index (NCIC-III) and Terrorist Screening Database (TSDB) (Army Directive 2014-05/AR 190-13), applicable installation, facility and area commander installation/facility access and local security policies and procedures (provided by Government representative), or, at OCONUS locations, in accordance with status of forces agreements and other theater regulations.

1.4.2.8. Search and Control: Fort Drum is a controlled access post. All vehicles and personnel are subject to search and seizure of contraband and/or unauthorized Government property. Contractor vehicles (Contractor-owned and personal), Contractor employees, and their personal property shall be subject to searches and seizure of contraband and/or unauthorized Government property upon entering or leaving the Installation. The search and seizure provisions of AR 190-16 shall apply to Contractor personnel entering or leaving Fort Drum.

1.5. Contractor Personnel: For the purpose of this contract, the term "Contractor personnel" applies to all Contractor employees, Subcontractor employees, or any other person(s) acting for or on behalf of the Contractor to perform work on this contract.

1.5.1. Project Manager: Prior to performance of a BPA Call, the Contractor shall designate in writing, to the Contracting Officer, a Project Manager (PM), who shall be responsible for the overall management, coordination, and supervision of the work performed. The PM shall have knowledge of the terms and conditions of the contract. This PM shall have full authority to act for the Contractor on all contract matters relating to daily operations of this contract. The PM shall be available, by phone, anytime Contractor personnel are performing services on Fort Drum.

1.5.2. Contractor Employees:

1.5.2.1. General Qualifications: Contractor employees shall be trained, qualified, certified and/or licensed under the requirements specified in this contract prior to starting work. The Contractor shall maintain records of training qualifications, certifications, and licenses and provide them to the Contracting Officer upon request. The Contractor shall ensure that the employees remain fully qualified to perform work under this contract. The Contractor shall maintain the work force in such a manner as to ensure that the employees remain fully qualified. The Contractor shall only employ persons able to speak, read, write, and understand English for those positions interacting with Government personnel, and where English is used or essential to provide the product, record, data, information, or service. Contractor personnel shall be physically capable of performing work under all climatic conditions.

1.5.3. Employee Conduct: The Contractor shall not allow any employee to perform work who has illegal possession of, or who is under the influence of alcohol or controlled substances. Government rules, regulations, laws, directives, and requirements, which are in place or issued during the contract term shall be applicable to all Contractor employees or representatives who enter the Installation or who travel using Government transportation. Violation of such rules, regulations, laws, directives, or requirements shall be grounds for removal (permanently or temporarily as the Government determines) from the work site. Individuals who violate such rules, regulations, laws, directives, or requirements may be denied access to the Installation, either temporarily or permanently. Contractor personnel receiving a driving under the influence (DUI) conviction may be prohibited from driving on the installation.

1.5.4. Employee Appearance: Contractor employees shall be appropriately dressed including any necessary individual protective clothing and equipment.

1.5.5. Personnel Constraints:

1.5.5.1. Personnel Constraints/Conflicts of Interest: The Contractor shall not hire for this contract, any person whose employment would result in a conflict of interest, or employment which is prohibited by Department of Defense Regulation 5500.7-R entitled "Joint Ethics Regulation (JER)", Dated November 17, 2011.

1.5.5.2. Restricted Personnel: The Contractor shall not employ persons for work on this contract if such employee is considered by the Installation Commander or designated representative to be a potential threat to the health, safety, security, general wellbeing, or operational mission of the Installation and its population.

1.5.6. Personnel Background Checks:

1.5.6.1. The Contractor shall screen its employees prior to employment under this UNCLASSIFIED contract and before being authorized access to the military installation/Government facility. The Contractor shall assume all costs involved in this screening. The screening checks will include:

1.5.6.1.1. The Contracting Officer or an appointed representative may request, in writing, a copy of the screening for an employee. If information is found, that presents a conflict with any law or regulation or the terms and conditions of this contract, the Contracting Officer can request in writing that the employee be removed from work under this contract.

1.5.7. Security Badges: Contractor personnel shall wear a distinctive Contractor furnished security (ID) badge readily identifying the individual as a Contractor employee. The badge shall be worn in a conspicuous place at all times when performing work under the contract.

1.5.8. Personnel Safety: The Contractor shall be responsible for initiating, maintaining, and supervising all safety precautions and programs in connection with the work. The Contractor shall comply with all applicable federal,

state, local, and Fort Drum laws and regulations including, but not limited to environmental, safety, and occupational health laws and regulations. Except as otherwise stated in the contract, if the Contractor encounters material on the project site reasonably believed to be hazardous (such as ammunitions), the Contractor shall immediately stop work in the affected area and give notice of the condition to the Contracting Officer or designated representative and Range Control (315-772-7152). Work in the affected area shall not resume without written permission of the Contracting Officer or designated representative.

1.6. SERIOUS ACCIDENT AND INCIDENT REPORTING:

1.6.1. The Contractor shall report serious accidents and incidents incurred while performing work under this contract immediately by the most expeditious means possible but not more than one hour following the accident or incident to the Fort Drum Directorate of Emergency Services, the Safety Office, and Contracting Officer. Serious accidents and incidents include, but are not limited to, those defined in AR 385-10 and AR 190-40 respectively or referenced in other applicable directives. Examples are as follows: One or more lives lost, one or more persons critically injured, three or more persons hospitalized due to one incident, property damage estimated to exceed \$2,000, fire causing major damage to structures, equipment, or vehicles, and HAZMAT, hazardous substances, and HAZWASTE incidents.

1.6.2. Record of Injury Form: Immediately after a job-connected injury, the Contractor shall prepare a record of the incident/accident and forward it to the Contracting Officer's Representative (COR). The COR will forward the incident/accident report to the Command Safety Office. If more information is required, the Command Safety office will coordinate with the COR for the required information.

1.7. CLAIMS LIABILITY ARTICLE: The Contractor shall indemnify, save harmless, and defend the Government from and against any and all claims, damages, actions, debts, liabilities, and attorneys' fees arising out of or in any manner predicated upon loss of or damage to the property of an injury to or death of any and all persons whatsoever, in any manner caused or contributed to by the Contractor, his agents, servants, employees or Subcontractors while in, upon, or about the military installation wherein this work is located, or while going to or departing from the same; and to indemnify and save harmless the Government from, and on account of damage of any kind which the Government may suffer as the result of acts of negligence, fraud or misconduct of any of Contractor's agents, servants, employees, or Subcontractors in or about said military installation.

1.8. TOXIC/HAZARDOUS MATERIAL AND WASTE MANAGEMENT

1.8.1. The Contractor shall have available at each work site where hazardous materials are used and stored, the applicable Safety Data Sheets (SDS). The Contractor shall use the DoD Hazardous Material Information System (HMIS) to research the availability of and to order SDS. The SDS shall be readily available to employees and the Contracting Officer or designated representative. The Contractor shall ensure employees are trained in the proper handling of hazardous materials.

1.8.2. The Contractor shall use Contractor-obtained environmentally preferred products for the performance of this contract. The Contractor shall provide the Contracting Officer or designated representative with a listing of hazardous materials, quantities to be used, and copies of applicable MSDS. All hazardous materials shall be stored IAW requirements in the MSDS and Installation Fire, Safety and Environmental regulations.

1.8.3. The Contractor shall cooperate with the Hazardous Materials Control Center to support inventories of hazardous materials IAW the Emergency Planning and Community Right-to-Know Act (EPCRA), 40 CFR 303 ET. Seq. and AR 200-1. The Contractor shall immediately notify the Contracting Officer or designated representative of any emergency releases of hazardous materials in the format required by EPCRA, 40 CFR 355.40.

1.8.4. If this contract results in generation of hazardous materials/waste, the Contractor shall comply with the Fort Drum Hazardous Waste Management Plan (HWMP) regarding the use, storage and disposal of generated hazardous wastes. The Contractor shall properly manifest and timely dispose all hazardous waste generated in accordance with New York State Department of Environmental Conservation (NYSDEC) Laws and Regulations.

1.9. Government Roles and Responsibilities.

1.9.1. Contracting Officer (KO)

The KO is the only person authorized to make any changes in any of the requirements listed on this PWS; notwithstanding any provisions contained elsewhere in this Blanket Purchase Agreement, said authority remains solely with the KO.

- In the event the Contractor makes any change at the direction of any person other than the KO, the change will be considered to have been made without authority and solely at the risk and expense of the Contractor.
- All Blanket Purchase Agreement administration will be effected by the KO.
- Communications pertaining to contractual administrative matters shall be addressed to the KO.
- No changes in or deviations from the terms and conditions shall be effected without a written modification to the Blanket Purchase Agreement, executed by the KO authorizing such changes.
- The KO will approve all Deliverables and plans required in this PWS and Part 5 Specific Tasks in each individual BPA Call.

1.9.2. Contracting Officer's Representative (COR)

The KO will appoint a COR during the performance of each individual BPA Call.

- The COR will provide assistance in identification and resolution of problems, conflicts in priority, subtask requirement definitions, and other operations type problems.
- The COR will perform IAW the responsibilities and duties identified in the appointment letter.

1.9.3. COR Authority

A letter of designation will be issued to the COR by the KO.

- A copy of the letter will be sent to the Contractor.
- The letter of designation states the responsibilities and limitations of the COR, especially with regard to changes in cost, price estimates, or changes in delivery dates.
- The COR is not authorized to change any of the terms and conditions with regard to cost, quantity, or schedule of the resulting BPA Call.

1.9.4. COR Functions

The COR or designated Government representative shall monitor all technical aspects of the Blanket Purchase Agreement and assist in Blanket Purchase Agreement administration.

- The COR or designated Government representative is authorized to perform the following functions:
 - assure the Contractor performs the technical requirements of the Blanket Purchase Agreement.
 - perform inspections necessary in connection with Blanket Purchase Agreement performance.
 - maintain written and oral communications with the Contractor concerning technical aspects of the Blanket Purchase Agreement.
 - issue written interpretations of technical requirements.
 - monitor, document, and report Contractor's performance and notify both the KO and Contractor of any deficiencies.
 - coordinate availability of Government-Furnished Property and provide direction or assistance for site entry requests of Contractor personnel.

1.10. Specific Contractor Requirements, Roles and Responsibilities

1.10.1. U.S. Residency

All Contractor employees shall be legal U.S. residents.

- The Contractor shall immediately remove any employee that is not a legal U.S. resident.
- The Contractor personnel shall be able to communicate clearly in the English language.

1.10.2. Contractor Hiring Restrictions

The Contractor shall not hire or subcontract with off-duty or former Government employees whose employment would result in a conflict of interest as defined in DOD 5500.7-R Joint Ethics Regulation 30 August 1993, to include change dated 17 November 2011.

1.10.3. Contractor Identification

The Contractor shall ensure that personnel are identified as a Contractor to distinguish themselves (e.g., badge, company logo, or uniform) from Government employees.

- The Contractor shall ensure all correspondence and reports produced are marked as Contractor products or that Contractor participation is disclosed.
- Contractor-owned/leased vehicles and trailers shall be clearly identified.

1.10.4. Standards of Conduct

Contractor personnel's conduct shall not reflect discredit upon the Government. The Contractor shall ensure all personnel present a professional appearance while working on the Government installation.

- The Contractor's employees shall observe and comply with all local policies and procedures concerning fire, safety, environmental protection, sanitation, security, and possession of firearms or other lethal or illegal weapons or substance.
- The Contractor shall ensure all Contractor employees, providing services under this Blanket Purchase Agreement, conduct themselves and perform services in a professional, safe, and responsible manner.
- The Contractor shall remove, from the job site, any employee for reasons of misconduct or security.
- The Contractor shall ensure employee conduct complies with 41 USC §423, Procurement Integrity.
- The Contractor shall also ensure that no Contractor employees conduct political related activities or events on the installation.
- The removal of such a person shall not relieve the Contractor of the requirement to provide personnel to perform adequate and timely service.

1.11 Emergency Services

1.11.1 Emergency Medical Treatment

The Contractor or their employees shall immediately notify their supervisor of any incident requiring immediate emergency medical treatment.

- The Government does not provide 911 emergency support ambulance service and/or DoD medical facility. Off base support for Ambulance will be dispatched.
- If injuries are incurred while an employee is performing work under this Blanket Purchase Agreement, the Contractor shall verbally notify the KO/COR no later than (NLT) two (2) hours after an emergency medical event, followed by a documented summary of events.
- The Contractor shall be responsible for reimbursement of any cost of provided emergency medical treatment services provided to Contractor personnel.

1.11.2 Accident Reporting

- The Contractor shall comply with Operational Safety and Health Administration (OSHA) for record keeping and reporting of all accidents resulting in death, injury, occupational disease, or adverse environmental impact.

- The Contractor shall provide a verbal report to the KO/COR within two (2) hours of each such occurrence followed up by an email documenting each such occurrence.
- The Contractor shall adhere to reporting of accidents IAW AR 385-10, The Army Safety Program (Chapter 3 Accident Investigation and Reporting, Chapter 4 Contracting Safety) and DA Pam 385-40, Army Accident Investigations and Reporting.

1.12 Safety

The Contractor shall safeguard and maintain all Government and Contractor property, as well as provide for the safety and well-being of personnel employed under this Blanket Purchase Agreement. The Contractor shall ensure slow moving or otherwise creates an unsafe condition are clearly visible to oncoming traffic and bystanders (e.g., equipped with rotating or flashing amber lights).

- The Contractor shall comply with AR 385-10, The Army Safety Program.
- All unsafe acts or conditions fostered by the Contractor or Contractor personnel may be grounds for the KO to halt any and all Contractor performance until such unsafe conditions are corrected.
- The Contractor shall take due caution not to endanger personnel during performance of this Blanket Purchase Agreement.
- Upon discovery of a serious hazard such as, but not limited to, fire, or fuel spill, the Contractor shall immediately notify the COR verbally follow up with an email notification.

1.12.1 Safety Plan

The Contractor shall develop and implement a safety plan for their employees.

- The Contractor shall submit the safety plan to the KO/COR for review and acceptance within 30 business days after Blanket Purchase Agreement award.
- Revisions shall be submitted to the KO/COR five (5) business days prior to the effective date of change.

1.12.2 Spill Plan

The Contractor shall comply with the Fort Drum Spill Prevention Control and Countermeasure Plan.

- The Contractor shall verbally notify the KO and COR, followed by written notification as required in the Fort Drum Spill Plan, if the Contractor spills or releases any hazardous substances, (i.e., substances listed in 40 CFR 302, Designation, Reportable Quantities, and Notification.)

1.13. ENVIRONMENTAL COMPLIANCE:

1.13.1. The Contractor shall comply with all Federal, State, and local regulations covering environmental protection. In case of a conflict among these laws and regulations, the most stringent law or regulation shall apply. If a Federal, State, or regulatory agency assesses any fine, penalty, or fee against the Government that is attributable to Contractor noncompliance with any environmental law or regulation, the Contractor shall indemnify the Government for the amount of the fine and other Government costs attributable to the violation (e.g., the cost of cleaning up a hazardous waste spill). In the event of Contractor noncompliance with any applicable environmental law or regulation, the Contracting Officer will determine whether the Government or the Contractor is responsible for abating or correcting the violation. This provision is not intended in any way to waive the Government's rights under any other provision of this contract. The Contractor shall fully comply with current and future Fort Drum regulations, plans and changes.

1.13.2. Non-Hazardous Products: In all instances where a product containing non-hazardous components can be substituted for a product with hazardous components, the Contractor shall use the product containing non-hazardous components. Provide information on substitutions to the Contracting Officer.

1.13.3. Fort Drum has implemented an Environmental Management System (EMS) to proactively deal with the environmental impacts of its processes, activities, and services. Fort Drum uses the ISO 14001:2004 as the standard for its EMS. All personnel performing work for or on behalf of Fort Drum must be aware of and understand Fort

Drum's Environmental Policy. Fort Drum offers EMS General Awareness Training in the form of a printed Handout. All Contractors and their employees are required to be made aware of EMS General Awareness Training and have posted EMS handout in the workplace that are available to all employees. Contractors are also responsible for ensuring all Subcontractors hired on their behalf receive EMS General Awareness Training handouts and that they are posted at the Subcontractor's site. The Contractor is also responsible to ensure that all goods and services used by the Contractor or any of its Subcontractors do not deviate from the installation Environmental Policy, and objectives and targets of the EMS.

1.13.4. Environmental Awareness Information can be found at the following link:

<http://www.drum.army.mil/PublicWorks/Pages/nepa.aspx>

1.13.5. Safety Data Sheets: For materials that have Safety Data Sheets (SDS) associated with them, the Contractor shall submit the SDS to the KO or designated Government representative (i.e., COR) for approval five (5) business days after BPA Call award.

- The Contractor shall adhere to all applicable requirements of the Installation Hazardous Waste Management Plan.
- The Contractor shall provide all materials, labor, training, transportation, and equipment for the handling and storage of hazardous materials or toxic materials.

1.14. Quality Control Plan (QCP): The Contractor shall provide and maintain an inspection system acceptable to the Government covering the services under this contract. Complete records of all inspection work performed by the Contractor shall be maintained and made available to the Government during contract performance and for as long afterwards as the contract requires. The Contractor shall submit its QCP to the Contracting Officer not later than five calendar days after contract award. The format of the QCP shall be in Microsoft Word on company letterhead.

PWS PART 2: DEFINITIONS AND ACRONYMS

2.1. DEFINITIONS: The definitions set forth below are those unique to this contract. Definitions for technical terms or words that are included in this contract can be found in the technical documents referenced in the individual functional areas of the PWS. The definitions provided below are oriented to Fort Drum's PWS. In many cases, definitions are specific by situation. The listing of definitions is not all-inclusive, but it has been derived from official publications (e.g., regulations and technical manuals) when available.

Acceptable Quality Level (AQL): The AQL is a designated value (percent) of defective outcomes/service that the Government indicates will be accepted using acceptable sampling techniques and procedures.

Alternate Contracting Officer's Representative (ACOR): An alternate individual from the functional activity appointed by the Contracting Officer and delegated specific authority to monitor contract performance and to perform specific contract administration functions in the absence of the COR.

Army Regulations (ARs): Publications issued by Department of the Army (DA) which are directive in nature and contain missions, responsibilities, policies and administrative procedures necessary to ensure uniform compliance with those policies.

Business Day: Monday through Friday, except for Government recognized holidays and days the Fort Drum installation has been closed for all but emergency business.

Contracting Officer (KO): An individual with the authority to enter into, administer, and/or terminate contracts and make related determinations and findings.

Contracting Officer's Representative (COR): An individual from the functional activity appointed by the Contracting Officer and delegated specific authority to monitor contract performance and to perform specific contract administration functions.

Contract Discrepancy Report (CDR): A formal method documenting unsatisfactory Contractor performance (contract deficiencies and defects against the AQL) in the contract file.

Defective Service: A unit of service, which contains one or more defects and does not conform to specified requirements.

Federal Acquisition Regulation (FAR): Provides uniform policies and procedures for acquisitions by executive agencies of the federal Government.

Government Furnished Property: All tangible property of Government furnished to Contractor.

Hazardous Waste: A waste as defined in title 40, CFR, Part 261.3. Special handling procedures and disposal facilities are required for their disposal in compliance with federal, state and local regulations.

Performance Requirements Summary (PRS): The PRS identifies key performance indicators and standards that represent logical service outputs that will be evaluated by the Government to assure the Contractor is fulfilling the terms of the contract.

Performance Standard: A measurable output or result associated with the performance-based description of a requirement found in the PWS.

Quality Control: Those actions taken by the Contractor to control the in-process performance of goods or services to ensure that contract quality standards are met.

Quality Assurance Surveillance Plan (QASP): An organized written document used by the Government for quality assurance surveillance.

2.2. ACRONYMS: For the purpose of the resultant contract, the acronyms listed below shall apply:

ACC	Army Contracting Command
ACOR	Alternate Contracting Officer's Representative
ACS	Army Community Service
ANSI	American National Standard Institute
AQL	Acceptable Quality Level
BPA	Blanket Purchase Agreement
CFR	Code of Federal Regulations
COR	Contracting Officer's Representative
DA	Department of the Army
DA Cir	Department of the Army Circular
DA Pam	Department of the Army Pamphlet
DEC	Department of Environmental Conservation
GFP	Government Furnished Property
KO	Contracting Officer
MSDS	Material Safety Data Sheets
NYSDEC	New York State Department of Environmental Conservation

POV	Privately Owned Vehicle
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PWS PART 3: GOVERNMENT FURNISHED RESOURCES

3.1. General: This section describes those items that will be furnished by the Government to the Contractor for performance of the requirements of this contract. The Contractor shall not make use of any property or services described in this section for any purpose other than performing the requirements of this contract. Contractor personnel are responsible for safeguarding GFP, equipment, and facilities. The Contractor shall be required to reimburse the Government for lost, damaged, or misappropriated property for which Contractor personnel are responsible.

3.2. Government Furnished Services:

3.2.1. Emergency Services:

3.2.1.1. Emergency Medical Treatment: Government furnished medical service is not available to Contractor personnel, except in emergency on-the-job situations when Contractor personnel suffer serious injury or acute pain. Government emergency treatment will be provided as the first point of medical care. Transfer to non-Government facilities shall be affected as soon as possible and as determined by attending medical authorities. Contractor employees experiencing emergency on-the-job injuries or illnesses may use Guthrie Clinic. The Contractor shall be responsible for any charges resulting from treatment at Guthrie Clinic. The hours of operation for Guthrie Acute Care Clinic are 9am -9pm. Any arrangement between the Contractor and Contractor employees relative to health care, and insurance(s) for health care, shall not interfere with the Government's right to reimbursement in the manner selected by the Government for each occurrence where emergency medical service is rendered. The Emergency Medical Services (EMS) telephone number is 911 (or 766 from a cell phone).

3.2.1.2. Fire Protection: The Government will provide fire protection and prevention services to the contract site. These services are obtained by calling the Fort Drum Fire Department for non-emergencies at 315-772-4131 and by dialing 911 (or 766 from a cell phone) for emergencies.

3.2.1.3. Police Protection and Law Enforcement: The Government will provide Police Protection and Law Enforcement services to the Contractor and Contractor personnel on the installation. This service shall also include any investigative services related to physical security of Government owned property and incidents involving Contractor owned property inclusive of privately owned property of Contractor personnel if the incident occurs on the installation. These services are obtained by calling the Directorate of Emergency Services.

3.3. GOVERNMENT FURNISHED SUPPLIES: None

3.4. GOVERNMENT FURNISHED PROPERTY:

3.4.1. The Government in many cases will provide the parts and pieces for installation.

PWS PART 4: CONTRACTOR-FURNISHED ITEMS AND SERVICES

4.1. GENERAL: With the exception of items specifically identified as Government furnished in Part 3, the Contractor shall furnish all supplies, equipment, supervision, materials, and services necessary to fulfil the requirements of this contract.

4.2. PERMITS, TAXES, LICENSES, ORDINANCES, AND REGULATIONS: The Contractor shall, at his own expense, obtain all necessary permits, give all notices, pay all license fees and applicable taxes, comply with municipal, State, and Federal laws, ordinances, rules, and regulations applicable to the business carried on under this contract.

4.3. CONTRACTOR OWNED PROPERTY:

4.3.1. Condition of Property: All Contractor property shall be in an operable condition and meet all applicable Federal, State, Local, and Installation requirements for its operation. Equipment shall also have complete and intact design and safety features as if they were new excluding the appearance of fair wear and tear on the equipment.

4.3.2. Identification and Markings:

4.3.2.1. Equipment: All Contractor furnished equipment shall be inscribed, engraved, stamped, or otherwise permanently marked to identify it as Contractor Owned property. The method of marking and information shall be at the Contractor's discretion except that it shall minimally identify the name of the Contractor's concern.

4.3.2.2. Vehicles: The Contractor shall provide and maintain sufficient vehicles required to fulfill the terms of this contract. Contractor Vehicles shall bear the name of the Contractor's concern on both right and left side of the vehicle. Identification affixed to vehicles shall be in bold text letters not less than one half (1/2) inch in stock and not less than three (3) inches high. Color and style of text are at the Contractor's discretion providing the text is in clear and sharp contrast to the surrounding area.

4.3.2.3. Operation: All Contractor owned equipment shall be operated according to applicable Federal, State, Local, and Installation laws and regulations as they apply to the equipment. This includes the requirement that Contractor personnel shall be adequately trained and possesses all necessary licenses, certification, or other required documents to operate the equipment.

PWS PART 5: SPECIFIC TASKS, FURNITURE MOVING BPA

5.1. GENERAL: The Contractor shall move, install, assemble, and disassemble furniture in a variety of buildings on Fort Drum, NY 13602 and its surroundings.

5.1.1 The Contractor shall move desks, table, chairs, wall lockers, electronic equipment, beds, dressers, wall hangings etc. to locations as directed on Fort Drum and its surrounding area (100-mile radius). Items to be moved are not limited to these listed.

5.1.2 The Contractor shall assemble, disassemble, and install the equipment and furniture listed in 5.1.1. Assembly shall be in accordance with manufactures recommendations.

5.1.3 The Contractor shall protect the items being moved, assembled, or disassembled from damage.

5.1.4 The Contractor shall protect all Government facilities from damage during moving, assembly, and disassembly operations. The Contractor is responsible for repairing any damage caused to facilities or equipment.

5.2. LOG IN–OUT: The Contractor shall contact the COR when the moving crews start work and when they complete work.

5.3. CLEAN UP: The Contractor shall clean up all debris and discarded materials resulting from operations at the end of each workday. Materials shall be disposed of off post in accordance with applicable local, state and federal

laws and regulations. In case of conflict among these laws and regulations, the most stringent law or regulation will apply. No open burning will be allowed.

PWS PART 6: APPLICABLE PUBLICATIONS

6.1. GENERAL: The following regulations/documents are applicable to this contract. The documents are Mandatory and shall be complied with. Supplements or amendments to these mandatory publications may be issued during the life of the contract. Supplements and amendments to mandatory publications shall be considered to be in full force and effective immediately upon publication. Publications are coded as Advisory (A) or Mandatory (M).

PUBLICATION	TITLE/SUBJECT	A/M
AR 190-40	Serious Accident Report	M
AR 190-13	The Army Physical Security Program	A
FD Reg 190-2	Fort Drum Traffic Code	M
FD Reg 385-3	Fort Drum Safety	M
FORMS		
DA Form 285	United States Army Accident Investigation Report	M

End of Performance Work Statement

SECTION 2: INSPECTION AND ACCEPTANCE

1. INSPECTIONS: Government inspections are for the sole benefit of the Government and do not relieve the Contractor of his responsibility for providing adequate quality control measures. The Government will perform quality assurance (QA) of the Contractor's performance under this contract using the method of surveillance specified in the Quality Assurance Surveillance Plan (QASP). The Government's QASP may be provided to the Contractor after contract award. The COR may compare results of inspections performed by the Contractor's inspectors with the actual conditions observed during Government inspections. The Government reserves the right to conduct 100% inspections.

2. ACCEPTANCE: The Government will accept all work when the Contractor performs and completes the work within the standards described in the PWS.

3. NON-CONFORMANCE: Failure by the Contractor to perform the work in accordance with the Performance Work Statement shall be considered a non-conformance, shall constitute a contract deficiency, and may be grounds for contract deduction in accordance with the QASP.

4. GOVERNMENT'S RIGHTS: The rights of the Government and remedies described in this section are in addition to all other rights and remedies set forth in these documents. Specifically, the Government reserves its rights under the Terms and Conditions clause; reference FAR Clause 52.212-4. Any deductions shall reflect the reduced value of services performed under the contract. The Contractor shall not be relieved of full performance of the services hereunder. The Government may modify the type and frequency of inspection of items.

SECTION 3: DELIVERIES OR PERFORMANCE

1. PERFORMANCE: Refer to the Performance Work Statement.

2. FEDERAL HOLIDAYS: Beyond the observance of Federal Holidays or uniquely occurring national events, the Contractor may observe other dates of public or religious significance; however, the occurrence and observation of such shall not relieve the Contractor from full performance of any contract requirement or specified delivery dates. Federal Holidays are as follows:

New Year's Day	1 January
Martin Luther King Day	3rd Monday in January
President's Day	3rd Monday in February
Memorial Day	last Monday in May
Juneteenth	19 June
Independence Day	4 July
Labor Day	1st Monday in September
Columbus Day	2nd Monday in October
Veteran's Day	11 November
Thanksgiving Day	4th Thursday in November
Christmas Day	25 December